IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA

MARC M. MOSZKOWSKI,

Appellant,

CASE NO.: 1D2025-2912

vs.

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,

Appellees.

INITIAL BRIEF OF APPELLANT

On Appeal from a Final Judgment entered in the Circuit Court of the First Judicial Circuit, in and for Escambia County, Florida, Hon. Jan Shackelford, Senior Judge.

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STATEMENT OF JURISDICTION

This Court has jurisdiction under article V, section 4(b)(1) of the Florida Constitution and Florida Rule of Appellate Procedure 9.030(b)(1)(A) to review final orders of the circuit courts.

The appeal is taken from a Final Judgment entered September 3, 2025, in *DeepGulf, Inc. & Toke Oil and Gas, S.A. v. Moszkowski*, Case No. 2018-CA-000543 (Fla. 1st Jud. Cir., Escambia County), which disposed of all claims as to all parties.

Appellant timely filed a motion for rehearing under Florida Rule of Civil Procedure 1.530, tolling rendition pursuant to Florida Rule of Appellate Procedure 9.020(h), and thereafter timely filed a Notice of Appeal.

TABLE OF AUTHORITIES

Cases

Statutes

§ 772.11, Fla. Stat. (Civil Theft)

§ 772.17, Fla. Stat. (Civil Theft)

§ 812.014, Fla. Stat. (Theft)

Ch. 90, Fla. Stat. (Florida Evidence Code)

Rules

Fla. R. App. P. 9.020

Fla. R. App. P. 9.030

Fla. R. App. P. 9.210

Fla. R. Civ. P. 1.530

Fla. R. Gen. Prac. & Jud. Admin. 2.530

PRELIMINARY STATEMENT

This appeal arises from a final judgment entered through a procedurally irregular process that departed from fundamental requirements of due process and Florida evidence law. The judgment rests on undisclosed and unauthenticated materials, unsworn advocacy submissions, and post hoc arithmetic theories never established through competent, substantial evidence.

As a result, the trial court adopted internally inconsistent findings, imposed liability without proof of ownership or tracing of specific property, and granted extraordinary equitable relief that was overbroad and unsupported by the record. The cumulative effect of these errors rendered the proceedings fundamentally unreliable and requires reversal.

The case reached state court only after a federal judgment was vacated and remanded when the Eleventh Circuit sua sponte questioned diversity based on the presence of “Toke Oil & Gas S.A.” Plaintiffs had never raised that issue, and no evidence established that Toke had a verifiable foreign domicile or valid corporate authority to sue. Its participation as a plaintiff was therefore legally void, and the basis for remand factually unsupported.

Over more than seven years of litigation, Appellant filed extensive pleadings raising evidentiary, procedural, and jurisdictional defects, many of which were never addressed on the merits. Despite those objections, the trial court repeatedly resolved dispositive issues without requiring admissible proof, materially impairing the reliability of the Final Judgment.

The court also denied Appellant’s repeated requests for remote appearance under Rule 2.530 despite undisputed medical and financial hardship, preventing his participation in critical hearings, including proceedings that resulted in default.

Finally, the judgment rests on multiple legal errors, including findings of civil theft and conversion unsupported by admissible evidence, reliance on unauthenticated materials such as Plaintiffs' pre-suit demand letter, misapplication of corporate ownership principles and statutes of limitation, disregard of federal preclusion, and issuance of expansive accounting and turnover relief without proof that Appellant possessed the demanded property.

Reversal is required.

RECORD ORIENTATION REGARDING TRIAL EXHIBITS

Plaintiffs designated their trial exhibits numerically (e.g., "Exhibit 13"). For clarity, this Brief refers to those exhibits using the shorthand "PX-" (e.g., "PX-13").

Plaintiffs listed eighteen trial exhibits. The Final Judgment expressly relies on eight: Exhibits 1, 2, 3, 9, 13, 15, 16, and 17.

Although cited in the Final Judgment, Plaintiffs did not file the exhibits with the trial court or provide them to Appellant before trial. The exhibits appear in the appellate record only as attachments to Appellant's post-trial motions seeking disclosure and review, which were denied.

This Brief focuses on PX-13, PX-15, and PX-17 because those exhibits were central to the trial court's findings and are sufficient, standing alone, to demonstrate reversible evidentiary error.

STATEMENT OF THE CASE AND FACTS

I. Background

This case arises from a dispute between Appellant, a shareholder and director of DeepGulf, Inc. and Toke Oil & Gas S.A., and the principals of those entities. At all relevant times, DeepGulf, a Florida corporation, had three directors, including Appellant. Toke Oil & Gas S.A., later wholly owned by DeepGulf, had two directors, including Appellant. Neither entity produced complete corporate records during the litigation.

II. DeepGulf's Purported Authorization to Initiate Litigation

At all relevant times, DeepGulf, Inc. had three directors: Rustin R. Howard, Thomas J. Johnson, and Appellant. Any board action, particularly one directed against a sitting director, required proper notice, identification of the matter to be considered, participation by all directors, and adoption of an express board resolution. No such process occurred before litigation was announced and threatened.

On December 26, 2017, the DeepGulf board of directors held a meeting attended only by Howard and Johnson. The board suspended Appellant as President and Executive Officer, amended the bylaws to limit presidential authority, and discussed alleged issues concerning corporate records, compensation, and Toke. The December 26 minutes reflect a disciplinary and investigative posture only. No vote authorizing litigation was taken, no claims were identified, and no counsel was retained.

On January 25, 2018, the board again met with only Howard and Johnson present. The board approved the December 26 minutes and adopted a resolution creating a committee composed solely of Howard and Johnson. The committee was tasked with investigating Appellant's prior activities as President, reviewing corporate records, and exploring potential remedies. The minutes do not reflect any vote authorizing litigation against Appellant, do not identify any claims, do not approve the filing of a complaint, and do not authorize counsel to sue Appellant. The committee's role is repeatedly described as investigative. Although the minutes include generalized language authorizing the committee to "initiate legal action to assert and secure company assets," that language is not tied to any identified defendant or claim and does not constitute a board vote authorizing litigation against Appellant.

The January 25 minutes were not communicated to Appellant at or near the time of the meeting and were first produced to him in discovery. Appellant received no notice that litigation would be discussed, no notice that he was a potential defendant, and no notice that any decision to sue had been made.

On January 31, 2018, counsel for DeepGulf sent demand letters to Appellant stating that he had been instructed to file suit against Appellant, including a claim for civil theft, if payment was not made. That representation asserted the existence of board authorization as of January 31, 2018. As the DeepGulf board minutes reflect, however, no vote authorizing litigation, much less a civil-theft claim, had been taken at that time.

On February 5, 2018, still before any board vote authorizing litigation, Howard and Johnson sent a letter to shareholders stating, in its opening line, that “The Board has decided to begin legal proceedings against Mr. Marc Moszkowski, President of DeepGulf.” The letter did not attach or reference any board minutes or resolution, did not identify any claims, and did not describe any vote authorizing litigation. That conclusory announcement does not correspond to any action reflected in the December 26 or January 25 board minutes.

On March 20, 2018, Appellant received notice of a board meeting scheduled for March 22, 2018. The notice stated only “review committee reports,” provided no agenda, and did not disclose that litigation would be considered. The meeting was scheduled at a time corresponding to approximately 11:00 p.m. in Appellant’s location abroad. Appellant did not attend.

At the March 22, 2018 meeting, the committee reported that it had retained counsel and presented a draft complaint. For the first time, the board voted unanimously to authorize the filing of litigation as presented. This meeting constitutes the first and only board action reflected in the minutes approving the initiation of suit, identifying claims, authorizing counsel, and ratifying the filing of a complaint.

Viewed together, the December 26 and January 25 board minutes establish that the board authorized investigation and committee inquiry only, not litigation. The January 31, 2018 demand letters and the February 5, 2018 shareholder letter therefore preceded any board vote authorizing suit and inaccurately represented that a decision to litigate had already been made. Litigation was not authorized until March 22, 2018, when the board for the first time approved the filing of a complaint based on a draft presented by the committee.

III. Toke Oil & Gas S.A. Never Authorized Litigation

Toke Oil & Gas S.A. never authorized the initiation of this litigation. At all relevant times, Toke's board consisted of only two directors: Rustin R. Howard and Appellant. No meeting of Toke's board was noticed or held to consider litigation against Appellant, no agenda identified litigation as a matter to be decided, and no resolution authorizing suit, retaining counsel, or asserting claims was ever adopted. Appellant did not receive notice of any Toke board meeting at which litigation would be considered and did not participate in, consent to, or ratify any decision to sue. Plaintiffs produced no board minutes, resolutions, or other corporate records reflecting any authorization by Toke to initiate this action. Accordingly, even assuming Toke's corporate existence arguendo, the record contains no evidence that Toke ever authorized this litigation.

Appellant removed this action to federal court based on complete diversity of citizenship. Appellant is a citizen of France, and DeepGulf, Inc. is a Florida corporation. Plaintiffs filed no objection to removal and raised no jurisdictional challenge during more than two years of federal litigation, during which they fully participated on the merits. Although Plaintiffs later invoked Toke Oil & Gas S.A. for jurisdictional purposes, all pre-suit demand letters, litigation threats, and instructions to counsel were issued solely in the name of DeepGulf, Inc.

The district court entered judgment in Appellant's favor on eight of nine counts, with the remaining count effectively moot. Plaintiffs appealed. In their initial brief before the Eleventh Circuit, Plaintiffs again raised no challenge to diversity jurisdiction and did not contend that Toke Oil & Gas S.A. defeated alienage jurisdiction.

The Eleventh Circuit sua sponte questioned whether Toke's alleged foreign status affected jurisdiction. Plaintiffs then asserted, for the first time, that Toke destroyed diversity. Plaintiffs presented no evidence establishing Toke's foreign corporate existence, registration, or corporate authority to participate in the litigation.

On April 21, 2021, the Eleventh Circuit vacated the district court's judgment solely for lack of subject-matter jurisdiction and remanded the case to state court. The court did not review or disturb any findings on the merits. The district court thereafter entered a ministerial order returning the case to state court.

IV. State Court Proceedings and Procedural Irregularities

Over several years, Appellant, indigent and medically unable to travel, filed extensive motions, declarations, and evidentiary submissions raising procedural and evidentiary defects. Many were not addressed on the merits. The trial court stated from the bench, and publicly posted at the time, that motions were not reviewed unless set for hearing.

Appellant repeatedly sought remote appearance under Florida Rule of General Practice and Judicial Administration 2.530 based on undisputed medical limitations and financial inability to travel internationally. Plaintiffs filed written objections to remote appearance. The court denied remote participation and conducted critical hearings in Appellant's absence, including sanctions proceedings that resulted in default.

V. The Evidentiary Record and PX-13

The record contains no admissible evidence supporting several core findings adopted by the trial court. The Final Judgment states that "[c]ivil theft [was] proven by clear and convincing evidence (Plaintiffs' Exhibit 13)."

PX-13 is Plaintiffs' pre-suit demand letter. It was not authenticated, admitted through testimony, or supported by underlying documents, and consists solely of accusations and legal conclusions. No witness testified to its contents. Reliance on PX-13 as evidence is reflected throughout the Final Judgment.

VI. The Evidentiary Record and PX-15, PX-17

The Final Judgment relies on Plaintiffs' Exhibit 15 ("PX-15"), a spreadsheet prepared by Howard, as evidentiary support for findings of conversion in the amount of $959,764.22 and civil theft in the amount of $345,000. PX-15 was not authenticated, admitted through testimony, or supported by underlying records. It is a litigation demonstrative reflecting Howard's theory of entitlement, not a business record or contemporaneous accounting, and was never tied to admissible evidence.

PX-15 rests on an ownership and allocation model unsupported by any agreement or corporate record. It assigns DeepGulf an economic entitlement of 83.67% of project proceeds and the founders 16.33%, notwithstanding undisputed evidence that DeepGulf owned no equity in Toke during the relevant period, Appellant owned 33%, and the founders owned 67%. The exhibit recharacterizes third-party distributions as "DeepGulf property" without any legal or evidentiary basis and contradicts the parties' actual ownership structure and course of conduct.

PX-15 was never disclosed to Appellant before or during trial. Appellant had no notice of its existence, no access to its contents, and no opportunity to object, rebut, or cross-examine regarding its assumptions or calculations. Appellant first learned of PX-15 when it was cited in Plaintiffs' proposed final judgment after trial, and the exhibit was not provided to him until months later. Nevertheless, the trial court relied on PX-15 as substantive proof. Reliance on undisclosed evidence deprived Appellant of due process.

The court also cited Plaintiffs' Exhibit 17 ("PX-17") in support of its conversion findings. PX-17 is not a financial statement, audit, or tracing analysis. It is an incomplete list of payments voluntarily disclosed by Appellant, created in the ordinary course of communication and without any allegation of wrongdoing. PX-17 was not authenticated and does not establish wrongful dominion over identifiable property belonging to DeepGulf.

Because the Final Judgment's findings of conversion and civil theft rest principally on PX-15 and PX-17, neither of which constitutes competent, substantial evidence, those findings are unsupported by the record.

VII. The Evidentiary Record and PX-4, PX-7

Plaintiffs referenced documents designated in this Brief as PX-4 and PX-7. Plaintiffs did not allege that Appellant signed these documents or that they were ever communicated to him at or near their purported dates.

PX-4 and PX-7 appeared only by title on Plaintiffs' state-court exhibit list. The documents themselves were never produced or disclosed to Appellant before or after trial, despite repeated written requests. Appellant has never been provided their contents.

As a result, Appellant's understanding of PX-4 and PX-7 is based solely on their titles and limited descriptions appearing in other materials produced during discovery years after their alleged creation. The documents were never authenticated, subjected to proof of assent, or the subject of any judicial finding establishing that they were binding on Appellant.

PX-4 and PX-7 are not cited or relied upon in the Final Judgment. After remand, Appellant sought renewed discovery of documents underlying Plaintiffs' claims, but no further discovery was permitted. Accordingly, the record contains no competent evidence establishing the provenance, contents, or legal effect of PX-4 or PX-7.

VIII. The Final Judgment

The trial court entered a Final Judgment that included the following rulings:

- Civil theft liability in the amount of $345,000, based on Plaintiffs' Exhibit 13.
- Conversion liability of $959,764.22, notwithstanding the court's express rejection of civil theft liability for the same funds.
- An accounting order requiring Appellant to produce corporate or financial documents he does not possess and has not possessed for more than a decade.
- A turnover order directing Appellant to surrender unspecified "assets," including assets located abroad, without identifying the property or the legal basis for extraterritorial enforcement.
- An award of approximately $300,000 in prejudgment interest, without testimony or exhibits establishing the dates, rates, or principal amounts applied.

The Final Judgment did not cite admissible evidence supporting these rulings, did not apply the statute of limitations, did not reconcile internally inconsistent determinations, and did not address the preclusive effect of the prior federal judgment. Appellant timely appealed.

IX. Standard of Review

This appeal implicates multiple standards of review.

A. Findings of Fact

A trial court's factual findings must be supported by competent, substantial evidence. *Shaw v. Shaw*, 334 So. 2d 13, 16 (Fla. 1976).

B. Civil Theft

A finding of civil theft under section 772.11, Florida Statutes, must be supported by clear and convincing evidence. Appellate review is de novo as to whether the evidence satisfies that heightened standard.

C. Conversion

Conversion requires proof of an unauthorized act asserting wrongful dominion or control over specific, identifiable property belonging to another at the time of the alleged act; openly disclosed, completed payments cannot be retroactively recharacterized as conversion. *City of Cars, Inc. v. Simms*, 526 So. 2d 119, 120 (Fla. 3d DCA 1988)

D. Legal Conclusions

Whether the trial court applied the correct law is reviewed de novo.

E. Due Process

Whether a party received constitutionally adequate notice and a meaningful opportunity to be heard presents a question of law. Due process is violated where a trial court relies on matters outside the record or on undisclosed information, thereby depriving a party of notice and a meaningful opportunity to be heard. *Levine v. Dade County*, 442 So. 2d 210, 213 (Fla. 1983).

F. Corporate Authority and Standing

Whether a party possessed legal authority or capacity to sue is a question of law reviewed de novo.

G. Extraterritorial Turnover Orders

Whether a court may compel delivery of foreign assets absent evidentiary support or statutory authority is reviewed de novo.

H. Statute of Limitations

Whether claims are time-barred is a legal question reviewed de novo based on the undisputed facts in the record.

X. Summary of Argument

The Final Judgment cannot be sustained because it rests on inadmissible and undisclosed materials, applies incorrect legal standards, and contains findings unsupported by the record.

First, the court found Appellant liable for civil theft of $345,000 based solely on PX-13, a pre-suit demand letter. PX-13 was never disclosed as trial evidence and was not provided to Appellant until months after trial. A demand letter cannot satisfy the clear and convincing evidentiary standard required for civil theft.

Second, the court found Appellant liable for conversion of $959,764.22 based exclusively on PX-15 and PX-17. PX-15 was never disclosed or authenticated and rests on unsupported allocation assumptions. PX-17 is an incomplete list of payments voluntarily disclosed years earlier and does not establish wrongful dominion. The record contains no competent, substantial evidence of conversion.

Third, Plaintiffs lacked corporate authority to initiate the lawsuit. Although DeepGulf adopted a litigation resolution shortly before filing suit, the resolution was procedurally irregular, adopted only after demand letters had issued, and failed to supply valid authorization. Toke Oil & Gas S.A. never authorized suit through any board action.

Fourth, the proceedings violated due process. Appellant demonstrated medical and financial inability to travel, yet the court denied remote appearance and proceeded in his absence, leading to default. In addition, trial exhibits were undisclosed, Appellant received key exhibits only after trial, and no transcript was available.

Finally, the Final Judgment contains internal inconsistencies, does not apply the statute of limitations, orders turnover of unspecified foreign assets without record support, and fails to address the preclusive effect of the prior federal judgment.

For these reasons, the Final Judgment should be reversed.

XI. Introduction to the Argument

The Final Judgment must be reversed because it is unsupported by competent, substantial evidence and rests on legal and evidentiary errors that permeate the proceedings. The arguments that follow address defects in the evidentiary record, internal inconsistencies in the trial court's findings, the improper imposition of extraordinary equitable relief, and the failure to apply the applicable statute of limitations. Each error independently warrants reversal.

POINT I

CIVIL THEFT MUST BE REVERSED

A. The Civil-Theft Finding Rests Solely on PX-13, Which Is Not Evidence

The trial court found Appellant liable for civil theft of $345,000 based exclusively on Plaintiffs' Exhibit 13 ("PX-13"), identified in the Final Judgment as the evidentiary basis for that finding. PX-13 is Plaintiffs' January 2018 pre-suit demand letter authored by counsel.

Although Appellant received the demand letter when it was sent in 2018, he was never informed that Plaintiffs intended to introduce it as trial evidence. PX-13 was not disclosed before trial and was not provided to Appellant until more than two months after trial, when he requested copies of the exhibits cited in Plaintiffs' proposed Final Judgment.

PX-13 consists solely of assertions and legal conclusions by counsel. It contains no financial data, attaches no corporate or banking records, identifies no source documents, and was never authenticated or admitted through testimony. Florida courts have long held that arguments and assertions of counsel are not evidence and cannot substitute for proof. *Walters v. State*, 994 So. 2d 1230, 1233 (Fla. 2d DCA 2008).

A trial court may not base its findings on unsworn statements, argument of counsel, or documents that were not admitted into evidence. *Lewis v. Heartsong*, Inc., 559 So. 2d 453, 454 (Fla. 1st DCA 1990).

Likewise, a trial court may not base factual findings on representations of counsel or materials that were never admitted into evidence. *Walker v. Figarola*, 59 So. 3d 188, 190 (Fla. 3d DCA 2011).

Because PX-13 is not evidence, it cannot satisfy, much less by clear and convincing evidence, the statutory requirements for civil theft under section 772.11, Florida Statutes. Reliance on an undisclosed attorney demand letter as substantive proof also deprived Appellant of due process. The civil-theft judgment therefore cannot stand.

B. Civil Theft Requires Clear and Convincing Proof of Felonious Intent, Which the Record Does Not Contain

Civil theft requires clear and convincing evidence that the defendant knowingly obtained or used property with felonious intent. Proof of a disputed business transaction, accounting disagreement, or mere breach of contract is insufficient; absent evidence of felonious intent independent of a debtor–creditor dispute, civil theft does not lie. *Jackson v. Household Fin. Corp.*, 73 So. 3d 325, 328–29 (Fla. 1st DCA 2011).

Accordingly, the existence of felonious intent must be shown by contemporaneous evidence of authorization, knowledge, or assent. The record contains no such evidence; the only documents ever produced purporting to supply it are post-hoc documents that, as shown by undisputed chronology and geography, cannot, as a matter of law, reflect any contemporaneous meeting or agreement and therefore cannot constitute competent, substantial evidence. Instead, the undisputed evidence shows that all challenged payments were openly disclosed and made with corporate knowledge:

- DeepGulf received more than $1.3 million in project distributions, over half of the total.
- The $345,000 at issue came from the founders' reduced pool, not from DeepGulf revenue.
- Appellant disclosed all distributions in writing in 2010, 2011, 2012, and again in 2014; those figures were incorporated by Howard into DeepGulf's contemporaneous Private Placement Memorandum.
- Howard's own assistant responded in writing in 2014, thanking Appellant for the clarity of his accounting.

The trial court also relied on PX-16 to infer concealment and felonious intent, but that email was a contemporaneous communication between two of DeepGulf's three directors during an internal governance dispute, not a concealed transaction or effort to hide payments from the corporation.

Open disclosure and contemporaneous reporting are incompatible with the animus furandi required for civil theft. Florida courts repeatedly reject civil-theft claims arising from business or accounting disputes rather than criminal intent.

The absence of intent is underscored by the trial court's own findings. The court expressly rejected civil-theft liability for $959,764.22 due to lack of intent, yet found civil theft of $345,000 based solely on PX-13. Both sums arose from the same financial structure. Internally inconsistent findings of intent cannot support a civil-theft judgment.

C. The Civil-Theft Claim Accrued Years Before Suit, and the Trial Court Failed to Address This Dispositive Defense

Civil-theft claims accrue when the alleged wrongful taking is complete, not when it is later discovered. § 772.17, Fla. Stat.; *Davis v. Monahan*, 832 So. 2d 708, 709–10 (Fla. 2002). Plaintiffs' theory rests entirely on an alleged wrongful taking of funds, classic conversion-type conduct, and turns on when Plaintiffs had specific or constructive knowledge of the operative facts.

The Final Judgment contains no findings addressing accrual or the date on which the alleged taking was complete. The determination of when a civil-theft claim accrues for statute-of-limitations purposes under § 772.17 is a question of law reviewed de novo. *Davis v. Monahan*, 832 So. 2d 708, 709–10 (Fla. 2002). To the extent the judgment rests on any notion that accrual may be deferred based on later "discovery," that premise is erroneous as a matter of law, because the discovery rule does not apply to civil-theft claims.

The undisputed record establishes multiple accrual points demonstrating that Plaintiffs' civil-theft theory is stale as a matter of law.

1. Constructive knowledge no later than 2012

Appellant provided financial disclosures in 2010, 2011, and 2012 reflecting aggregate "Directors' salaries" and compensation paid at the director level, including amounts attributable to Appellant. Plaintiffs retained these materials, raised no contemporaneous objection, and reflected the same figures into the contemporaneous Private Placement Memorandum.

Under *Davis v. Monahan, 832 So. 2d 708, 709–10 (Fla. 2002)*, a civil-theft claim accrues when the alleged wrongful taking is complete, not when it is later discovered. Here, the alleged payments underlying Plaintiffs' civil-theft theory were made no later than 2012, at which point the taking, if any, was complete and accrual occurred as a matter of law.

Even if a discovery-based accrual rule applied, which *Davis* expressly rejects for civil-theft claims, the record independently establishes that Plaintiffs were aware of the existence and category of the challenged compensation by 2012. Accordingly, under either framework, Plaintiffs' 2018 civil-theft claim falls outside the limitations period prescribed by § 772.17.

2. Specific Receipts by March 6, 2014

Even if earlier disclosures were disregarded, Appellant's March 6, 2014 email provided a comprehensive accounting of the $345,000 distribution, including all numerical details and the transfer record. Howard's assistant responded in writing, acknowledging the clarity of the explanation. This communication confirms Plaintiffs' actual knowledge of the operative facts by that date.

Plaintiffs' claim of "late discovery" based on alleged difficulty understanding documents is legally irrelevant. The statute runs when facts are disclosed, not when a recipient later claims to have understood them. *Davis*, 832 So. 2d at 709–10

3. The Trial Court Failed to Resolve a Properly Raised, Dispositive Accrual Defense

Appellant raised the statute-of-limitations defense below, placing accrual squarely at issue. The trial court made no findings regarding when the alleged wrongful taking was complete and conducted no accrual analysis under *Davis v. Monahan* or section 772.17, Florida Statutes.

Where a trial court fails to conduct the analysis necessary to resolve a properly raised, dispositive defense, reversal is required. *Green v. Cottrell*, 204 So. 3d 22, 27 (Fla. 2016). The absence of findings addressing accrual precludes meaningful appellate review and independently requires reversal. *Heldenmuth v. Groll*, 128 So. 3d 895, 898–99 (Fla. 4th DCA 2013).

Conclusion of Point I

The civil-theft judgment rests solely on PX-13, which is not evidence; lacks any proof of felonious intent; is internally inconsistent with the court's own findings; and was asserted outside the applicable statute of limitations. Under any possible accrual date, Plaintiffs' civil-theft claim was untimely and unsupported by competent evidence. The civil-theft judgment must be reversed as a matter of law.

POINT II

THE CONVERSION FINDING MUST BE REVERSED BECAUSE PLAINTIFFS FAILED TO PROVE OWNERSHIP OR WRONGFUL DOMINION, AND THE ONLY EXHIBITS CITED (PX-15 AND PX-17) WERE UNDISCLOSED, UNAUTHENTICATED, AND FACTUALLY INSUFFICIENT

The trial court found Appellant liable for conversion of $959,764.22. The Final Judgment cites only PX-15 and PX-17 as support for that finding. Neither exhibit constitutes competent, substantial evidence of conversion, and, more fundamentally, Plaintiffs failed to prove that DeepGulf owned or had an immediate right to possess the funds allegedly converted.

A. Conversion Requires Proof of Plaintiff's Ownership or Immediate Right to Possession and an Unauthorized Exercise of Dominion

Conversion is an unauthorized act that deprives another of his property permanently or for an indefinite time and requires proof of dominion or control over property belonging to the plaintiff, inconsistent with the plaintiff's rights. *City of Cars, Inc. v. Simms*, 526 So. 2d 119, 120 (Fla. 3d DCA 1988). Findings of conversion, like all factual findings, must be supported by competent, substantial evidence. *Shaw v. Shaw*, 334 So. 2d 13, 16 (Fla. 1976).

Here, the conversion award fails at the threshold because Plaintiffs did not prove that the $959,764.22 constituted DeepGulf property or a fund over which DeepGulf had an immediate right of possession.

B. Plaintiffs Failed to Prove That DeepGulf Owned the $959,764.22 or Had Any Right to Possess It

The record establishes that the $959,764.22 was drawn from the founders' distribution pool, i.e., a subset of the founders' already reduced share of total project distributions. Plaintiffs offered no competent proof that DeepGulf had any contractual, corporate, or equitable entitlement to the founders' share.

Absent proof that the disputed funds belonged to DeepGulf (or that DeepGulf had an immediate right to possession), a conversion claim cannot stand. Plaintiffs did not identify any agreement, board resolution, ownership record, accounting ledger, or contemporaneous source document establishing DeepGulf's ownership of the founders' distributions. Nor did Plaintiffs show any tracing of a specific, identifiable DeepGulf fund into Appellant's possession. The conversion judgment therefore lacks the required evidentiary predicate.

C. PX-15 Cannot Support Conversion Because It Was Undisclosed, Unauthenticated, and Reflects Litigation Assumptions Rather Than Admissible Proof

The Final Judgment relies on PX-15, a spreadsheet prepared by Mr. Howard. PX-15 was not disclosed to Appellant before trial and was not provided until months later, after Appellant requested the exhibits cited in Plaintiffs' proposed Final Judgment. Reliance on an undisclosed exhibit as the sole proof of dispositive liability deprived Appellant of a meaningful opportunity to examine, object, rebut, or cross-examine.

Independently, PX-15 was never authenticated and was not shown to be a business record or derived from an underlying ledger or contemporaneous accounting system. It bears no signature, no date, and no evidentiary foundation linking it to admissible source data. As presented, PX-15 functions as an advocacy demonstrative reflecting Mr. Howard's litigation theory, not as competent evidence of ownership, tracing, or wrongful dominion.

Most critically, PX-15 rests on an allocation model that assigns DeepGulf an entitlement to funds it did not own. PX-15's premise is not established by any admitted corporate document, ownership record, assignment agreement, or contemporaneous accounting. A conversion judgment cannot rest on a post hoc arithmetic theory that substitutes for proof of ownership and the right to possess.

D. PX-17 Does Not Establish Wrongful Dominion or Ownership; At Most It Reflects Disclosed Transactions

The Final Judgment also cites PX-17, a partial list of payments Appellant voluntarily provided before litigation. PX-17 is not a tracing analysis, does not identify any wrongful taking, does not establish DeepGulf ownership of any specific funds, and does not show an unauthorized act inconsistent with DeepGulf's rights. If anything, PX-17 is consistent with open reporting rather than concealment or wrongful dominion.

PX-17 therefore cannot supply the missing elements of conversion: ownership/right to possession, wrongful dominion, and identification of a specific, identifiable fund purportedly belonging to Plaintiffs.

E. No Other Evidence Supports the Conversion Award

The Final Judgment cites no testimony establishing that the $959,764.22 belonged to DeepGulf, no audit, no expert accounting, no admissible tracing, and no corporate record granting DeepGulf any right to the founders' distributions. Because the court relied solely on PX-15 and PX-

17, and neither is competent proof of ownership or wrongful dominion, the conversion award is unsupported by competent, substantial evidence and must be reversed. *De Groot v. Sheffield*, 95 So. 2d 912, 916 (Fla. 1957).

Conclusion of Point II

The conversion judgment fails because Plaintiffs did not prove that DeepGulf owned or had an immediate right to possess the $959,764.22, and the only exhibits cited by the trial court (PX-15 and PX-17) were undisclosed, unauthenticated, and factually insufficient to establish conversion. The conversion finding must be reversed.

POINT III
THE JUDGMENT MUST BE REVERSED BECAUSE TOKE OIL & GAS S.A. LACKED CORPORATE CAPACITY AND WAS NEVER A JURISDICTIONALLY VALID PLAINTIFF

This action proceeded in state court only after the federal judgment was vacated and the case remanded based on the purported presence of “Toke Oil & Gas S.A.” as a foreign plaintiff. The record establishes, however, that Toke lacked both corporate authority to sue and any demonstrated foreign domicile. Its inclusion as a plaintiff was therefore legally ineffective, and the proceedings below rested on a fundamental structural defect.

A. Plaintiffs Did Not Contest Federal Jurisdiction Until After an Adverse Merits Ruling

Appellant removed the action to federal court based on diversity jurisdiction. Plaintiffs filed no motion to remand, raised no jurisdictional objection, and litigated the case on the merits for more than two years. The district court entered judgment largely in Appellant's favor, granting summary judgment on eight of nine counts.

In their initial brief to the Eleventh Circuit, Plaintiffs again did not challenge diversity jurisdiction or contend that Toke Oil & Gas S.A. defeated alienage jurisdiction. The issue arose only when the Eleventh Circuit, sua sponte, questioned jurisdiction based on Toke's alleged foreign status. Plaintiffs had never previously asserted that Toke had a foreign domicile or that its presence defeated diversity.

This procedural history underscores that Toke's purported foreign status was not supported by evidence in the record and was not treated by Plaintiffs themselves as jurisdictionally dispositive during the federal proceedings.

B. The Record Contains No Evidence That Toke Had a Foreign Domicile

No exhibit, corporate record, or official filing establishes that Toke Oil & Gas S.A. is still registered, or domiciled in Timor-Leste or any other foreign jurisdiction. Plaintiffs produced no foreign registration documents and identified no foreign corporate address.

Instead, the only address associated with Toke in the pleadings and record was a residential address in Pensacola, Florida. On this record, Toke's status as a foreign corporation was never established. Absent proof of foreign domicile, Toke could not have defeated diversity jurisdiction.

C. Toke Never Authorized Litigation Through Any Corporate Act

Independently, Toke lacked corporate capacity to sue. At all relevant times, Toke had two directors: Appellant and Howard. No board meeting was noticed, no agenda circulated, no vote held, no minutes created, and no resolution adopted authorizing litigation.

A corporation may initiate litigation only through proper corporate authorization. Where no board action authorizes suit, the corporation lacks capacity to appear as a plaintiff. The record contains no evidence of any corporate act by Toke authorizing its participation in this action.

D. Toke's Inclusion as a Plaintiff Was Therefore Jurisdictionally Ineffective

Because Toke was neither shown to be a foreign corporation nor authorized to sue, its inclusion as a plaintiff had no legal effect. A party that lacks corporate capacity and whose domicile is unproven cannot supply the jurisdictional fact necessary to defeat diversity.

The remand from federal court was based on the assumption that Toke was a foreign plaintiff whose presence destroyed alienage jurisdiction. The record, however, does not support that assumption.

E. The Proceedings Below Were Tainted by This Structural Defect

Because the case proceeded in state court on the premise that Toke was a jurisdictionally relevant foreign plaintiff, the proceedings below rested on a foundational defect. Where an action proceeds on an incorrect jurisdictional premise or includes a plaintiff that lacked capacity to sue, the resulting judgment cannot stand.

Conclusion of Point III

Toke Oil & Gas S.A. lacked both a proven foreign domicile and corporate authority to initiate litigation. Its inclusion as a plaintiff was legally ineffective and could not defeat diversity jurisdiction. Because the proceedings below rested on this structural defect, the judgment must be reversed.

POINT IV
THE DEFAULT JUDGMENT MUST BE REVERSED BECAUSE APPELLANT WAS DENIED A MEANINGFUL OPPORTUNITY TO BE HEARD

The default judgment was entered after Appellant was denied indigency status, denied remote appearance, and ordered to appear in person despite undisputed medical and financial inability to do so. The resulting contempt and default were not the product of willful noncompliance, but of circumstances beyond Appellant’s control. Entry of default under these conditions violated due process and requires reversal.

A. Due Process Requires a Meaningful and Realistic Opportunity to Be Heard

Both Florida and federal law require that a litigant be afforded a meaningful opportunity to be heard before dispositive sanctions are imposed. Due process turns on a party’s actual ability to participate, not on a theoretical or formal opportunity to appear. A default entered when a party is unable to appear or defend due to circumstances beyond that party’s control is constitutionally infirm.

B. The Denial of Indigency Was Unsupported by Evidence and Deprived Appellant of Procedural Protections

Appellant submitted a verified application for indigency establishing monthly income below $1,000, lack of savings, and inability to afford international travel, lodging, or extended stay in Florida. Plaintiffs opposed indigency without submitting financial evidence, and the trial court denied indigency without conducting an evidentiary hearing or making findings addressing Appellant's current financial condition.

Months later, Appellant was granted indigency status for purposes of this appeal, and indigency was also recognized in the related French proceedings. Those subsequent determinations underscore the lack of evidentiary support for the earlier denial, which deprived Appellant of procedural accommodations necessary to participate in the proceedings.

C. The Court Denied Remote Appearance Despite Uncontroverted Medical Evidence of Inability to Travel

Appellant submitted medical documentation confirming two large, painful abdominal hernias and medical advice against long-duration air travel. That evidence was not rebutted by any medical testimony.

Plaintiffs did not dispute the existence or severity of the condition. Their sole objection to Appellant’s photographic submissions was that Appellant’s face did not appear in the images, notwithstanding that the photographs plainly depicted the condition described in the physician’s certification and that identifying features had been redacted for privacy. Plaintiffs offered no medical contradiction and did not contend that the condition was fabricated or exaggerated.

The trial court nevertheless denied remote appearance and required in-person attendance without addressing the undisputed medical condition, without resolving the purely formal objection raised, and without analyzing Rule 2.530 or reasonable alternatives.

Compelling a litigant with documented physical impairments to undertake international travel under these circumstances violates due process.

D. The Default Resulted From Impossibility, Not Willful Noncompliance

At the time of the orders compelling in-person appearance, Appellant lacked both the financial means and the physical capacity to travel. He submitted verified documentation of both conditions. An order that requires performance that is impossible to accomplish cannot serve as the basis for contempt or default. Sanctions imposed under such circumstances are constitutionally defective.

E. Prejudice Was Magnified by the Absence of Exhibits and Any Trial Record

After the default and trial, Appellant did not receive the trial exhibits relied upon by the court until more than two months later. He was therefore unable to evaluate or challenge the evidence used against him. The Clerk of Court later advised that no recording of the trial existed, eliminating any possibility of a transcript.

Without timely access to exhibits or a trial record, Appellant was deprived of a meaningful opportunity to seek rehearing, clarification, or review. Florida law prohibits reliance on undisclosed evidence that deprives a party of a fair opportunity for adversarial testing, *Binger v. King Pest Control*, 401 So. 2d 1310 (Fla. 1981), and requires that trial court findings rest on competent, substantial evidence reflected in the record, *Massey v. Charlotte County*, 842 So. 2d 142 (Fla. 2d DCA 2003).

Conclusion of Point IV

The default judgment resulted from a process that denied Appellant a meaningful opportunity to be heard, compelled compliance that was physically and financially impossible, and deprived Appellant of access to the evidence and record necessary to defend himself. Because the default was entered under circumstances that violated due process, the judgment must be reversed.

POINT V
THE FINAL JUDGMENT RESTS ON UNDISCLOSED, UNAUTHENTICATED, AND LEGALLY INSUFFICIENT EXHIBITS, IN VIOLATION OF DUE PROCESS AND FLORIDA EVIDENCE LAW

The Final Judgment rests on three exhibits, PX-13, PX-15, and PX-17, none of which constitutes competent, admissible evidence capable of supporting the findings entered. Reliance on these materials violated Florida evidence law and deprived Appellant of due process.

A. PX-13 Is a Presuit Demand Letter and Cannot Constitute Clear and Convincing Evidence of Civil Theft

The Final Judgment expressly states that civil theft was “proven by clear and convincing evidence (Plaintiffs’ Exhibit 13).” PX-13, however, is merely Plaintiffs’ January 31, 2018 presuit demand letter authored by counsel. It is unsworn, unauthenticated, and contains only allegations and legal conclusions.

Florida courts consistently hold that unsworn allegations and attorney assertions are not evidence and cannot support factual findings. A demand letter contains no proof of ownership, no financial data, no source documents, and no testimony. It cannot satisfy, much less by clear and convincing evidence, the statutory requirements for civil theft.

Reliance on PX-13 as substantive proof therefore constitutes legal error and independently requires reversal of the civil-theft finding.

B. PX-15 Was Undisclosed, Unauthenticated, and Factually Insufficient to Support Conversion

PX-15 is a spreadsheet prepared by Mr. Howard. It was never disclosed before trial and was not provided to Appellant until more than two months after judgment, when Appellant requested copies of the exhibits cited in the proposed Final Judgment. PX-15 was never authenticated under sections 90.901–90.956, Florida Statutes, and no testimony established its accuracy, reliability, or derivation from admissible source records.

Substantively, PX-15 reflects a litigation theory rather than admissible proof. It assigns DeepGulf an 83.67% entitlement to project distributions based on an arithmetic model unsupported by any ownership document, capitalization record, assignment agreement, or contemporaneous accounting. The model contradicts the undisputed ownership structure and DeepGulf's own historical disclosures.

An undisclosed, self-generated spreadsheet reflecting a party's litigation assumptions is not competent, substantial evidence and cannot support a conversion judgment.

C. PX-17 Is an Incomplete Payment List That Does Not Establish Wrongful Dominion or Ownership

The Final Judgment also cites PX-17, which is a partial list of payments reflecting only a subset of the transactions Appellant had voluntarily disclosed. PX-17 does not identify any unauthorized transfer, does not establish that the listed funds belonged to DeepGulf, and does not demonstrate any exercise of dominion inconsistent with DeepGulf's rights.

A conversion claim requires proof of ownership or an immediate right to possession and an unauthorized act of control. PX-17 establishes none of these elements. At most, it reflects historical transactions without context or evidentiary foundation.

D. Reliance on These Exhibits Violated Due Process

Appellant did not receive PX-15 or PX-17 until long after trial, could not attend trial because appearance was medically and financially impossible, and had no access to a transcript because no recording exists. He therefore had no meaningful opportunity to examine, object to, or rebut the exhibits on which the court relied.

Florida law prohibits reliance on undisclosed evidence and requires that findings be based on evidence subjected to adversarial testing. *Binger v. King Pest Control*, 401 So. 2d 1310 (Fla. 1981).

E. The Judgment Cannot Stand Where the Exhibits Cannot Support the Findings

Civil theft requires clear and convincing evidence. Conversion requires competent, substantial evidence of ownership and wrongful dominion. Here, the exhibits relied upon consist of an attorney demand letter, an undisclosed and unauthenticated spreadsheet, and an incomplete payment list. None is capable of supporting the findings entered.

Because the Final Judgment rests on exhibits that are legally insufficient and were not properly disclosed or admitted, reversal is required.

POINT VI
UNSWORN ASSERTIONS AND POST-HOC ARITHMETIC THEORIES CANNOT SUPPLY THE EVIDENTIARY ELEMENTS REQUIRED FOR LIABILITY

Even assuming, arguendo, that Plaintiffs' Exhibits PX-13, PX-15, and PX-17 had been properly disclosed, authenticated, and admitted, which they were not, their contents remain legally insufficient to support any finding of liability.

A presuit demand letter, a litigation summary, or a self-generated spreadsheet is not evidence of entitlement. Such materials are advocacy tools. They do not establish ownership, tracing, or wrongful dominion, and they cannot substitute for competent, substantial evidence.

Here, Plaintiffs' case depends on unsworn assertions and post-hoc arithmetic constructs that were never tied to contemporaneous corporate records, never grounded in any operative agreement, and never supported by admissible proof. Most notably, Plaintiffs advanced an allocation theory asserting, without documentary support, that DeepGulf was entitled to (1) 51% of all project proceeds and (2) 67% of the already-reduced 49% founders' share, yielding a purported 83.67% entitlement to distributions.

That theory is unsupported by any contract, corporate resolution, ownership record, or contemporaneous accounting. It double-counts ownership interests, retroactively rewrites equity allocations, and disregards the undisputed chronology of ownership and distributions. Florida law does not permit courts to derive liability from speculative arithmetic untethered to proof.

Findings of fact must be supported by competent, substantial evidence, not by internal logic drawn from advocacy documents. Where a judgment rests on unsworn assertions or unsupported mathematical theories rather than admissible evidence, it cannot stand.

Accordingly, any portion of the Final Judgment premised directly or indirectly on PX-13, PX-15, PX-17, or on the arithmetic theories embedded therein fails as a matter of law and must be reversed.

POINT VII
THE FINAL JUDGMENT IS NOT SUPPORTED BY COMPETENT, SUBSTANTIAL EVIDENCE AND MUST BE REVERSED

A final judgment following a bench trial must be supported by competent, substantial evidence. This appeal does not ask the Court to reweigh the evidence or substitute its judgment for that of the trial court, but instead challenges the legal sufficiency of the evidence supporting the judgment. The distinction is dispositive: while the weight of the evidence is for the trier of fact, legal sufficiency presents a question of law subject to appellate review. See *Tibbs v. State*, 397 So. 2d 1120, 1123–24 (Fla. 1981).

Findings may not rest on speculation, conjecture, or inferences unsupported by competent, substantial evidence, and relief may not be granted based on assertions unsupported by the record. *City of Jacksonville v. Naegele Outdoor Advert. Co.*, 634 So. 2d 750, 753 (Fla. 1st

DCA 1994). Where the evidentiary record does not establish the essential elements of liability, reversal is required. Arguments of counsel are not evidence and cannot supply missing proof. *Walters v. State*, 994 So. 2d 1230, 1233 (Fla. 2d DCA 2008).

Here, the Final Judgment does not identify, and the record does not contain, competent, substantial evidence supporting the Court's central findings of ownership, entitlement, or wrongful deprivation. Instead, the Court's conclusions derive from undisclosed and unauthenticated exhibits, unsworn assertions, and post hoc arithmetic theories untethered to any operative agreement or contemporaneous corporate record.

Critically, the Final Judgment does not cite:

- any contract granting Plaintiffs the percentage interests imposed;
- any board resolution authorizing the asserted ownership claims;
- any contemporaneous accounting establishing Plaintiffs' entitlement; or
- any admissible tracing showing that the funds at issue belonged to Plaintiffs at the time of the alleged conversion or theft.

Absent such proof, the Court's findings rest on acceptance of Plaintiffs' litigation theory rather than on evidence. Florida law does not permit a trial court to supply missing elements of proof or grant relief where the evidentiary record does not support the underlying claim. Equitable relief may not be granted unless the allegations supporting it are proven by competent, substantial evidence. *Uniweld Prods., Inc. v. Indus. Polychemical Servs*, Inc., 541 So. 2d 1311, 1314 (Fla. 4th DCA 1989). A court's equitable powers do not permit it to fashion a remedy or impose liability where the evidence does not support the underlying claim. *Meyers v. Shoreline Found., Inc.*, 17 So. 3d 920, 923 (Fla. 4th DCA 2009).

Due process requires a reasonable opportunity to prove or disprove the allegations at an evidentiary hearing. *Achurra v. Achurra*, 80 So. 3d 1080, 1083–84 (Fla. 1st DCA 2012).

A trial court's findings cannot stand where they rest on speculation or conjecture rather than competent, substantial evidence in the record. *Pino v. Guetzloe*, 995 So. 2d 532, 539 (Fla. 5th DCA 2008).

The Court's own rulings further underscore the evidentiary deficiency. The rejection of civil-theft liability for $959,764.22 for lack of proof reflects the absence of competent evidence establishing ownership and entitlement to those funds. The Final Judgment nevertheless treats the same amounts as Plaintiffs' property for purposes of conversion, without identifying any additional admissible evidence supporting that conclusion.

Because the Final Judgment is unsupported by competent, substantial evidence, it constitutes reversible error. The findings cannot be affirmed on appeal, and the judgment must be reversed.

POINT VIII
THE FINAL JUDGMENT RESTS ON INTERNALLY INCONSISTENT FACTUAL FINDINGS REGARDING OWNERSHIP AND ENTITLEMENT, CONSTITUTING REVERSIBLE ERROR

A final judgment cannot stand where its factual findings are internally inconsistent or rest on mutually incompatible premises. Findings of fact and conclusions of law must form a coherent whole grounded in the same evidentiary record. Where a court adopts one set of factual determinations to reject a claim but then relies on incompatible assumptions to impose liability on another claim, reversal is required.

Here, the Final Judgment rests on irreconcilable findings concerning ownership and entitlement to the same funds.

The Court expressly rejected Plaintiffs' civil-theft claim for $959,764.22, finding that the evidence did not establish the elements necessary to impose that liability. In doing so, the Court necessarily declined to accept

Plaintiffs' theory that the disputed funds were wrongfully taken from DeepGulf under circumstances demonstrating unlawful appropriation.

The court nevertheless imposed liability for conversion of the same $959,764.22, premised on the conclusion that those funds constituted Plaintiffs' property and were subject to wrongful dominion inconsistent with Plaintiffs' rights. Notwithstanding that the court imposed conversion liability for funds paid to other directors, the judgment treated openly disclosed historical payments as conversion while simultaneously finding no theft—an internal inconsistency that confirms the absence of any contemporaneous wrongful dominion.

These determinations cannot be reconciled on the record presented. Both civil theft and conversion require proof that the property at issue belonged to the plaintiff or that the plaintiff had an immediate right to possession. Where the Court declined to accept Plaintiffs' ownership and entitlement theory when evaluating civil theft, it could not simultaneously presume that same ownership and entitlement for purposes of conversion without identifying additional, independent evidence supporting that conclusion.

The Final Judgment identifies no such evidence. Instead, it reflects acceptance of Plaintiffs' asserted entitlement for conversion purposes despite the Court's earlier rejection of the same factual premise when evaluating civil theft. A court may not shift between incompatible factual assumptions to sustain liability on alternative theories without evidentiary support for each.

This internal inconsistency reinforces the broader defect identified in Points V through VII: the absence of competent, substantial evidence establishing Plaintiffs' ownership or entitlement to the disputed funds. Recharacterizing the same evidentiary record under different legal labels does not cure that deficiency.

Because the Final Judgment rests on mutually incompatible factual findings regarding ownership and entitlement, it is internally inconsistent and cannot be affirmed. This incoherence constitutes reversible error and independently requires reversal or vacatur.

POINT IX
PLAINTIFFS FAILED TO IDENTIFY OR TRACE SPECIFIC PROPERTY, WHICH IS FATAL TO THEIR CLAIMS FOR CONVERSION, CIVIL THEFT, AND ACCOUNTING

Claims for conversion and civil theft under Florida law require identification of specific, identifiable property belonging to the plaintiff at the time of the alleged wrongdoing. Where funds are pooled, commingled, or distributed pursuant to an ownership structure, liability cannot be imposed absent proof tracing particular monies to the plaintiff and demonstrating exclusive ownership or an immediate right to possession.

The record contains no such proof.

A. Plaintiffs Failed to Identify or Trace Any Specific Property as Their Own

Plaintiffs did not identify any segregated account containing only their funds, did not trace the path of any specific dollar amount from source to alleged misappropriation, and did not demonstrate that the funds at issue were not subject to competing ownership interests. Instead, the undisputed evidence shows that project proceeds were distributed among multiple stakeholders over time from pooled accounts reflecting shared ownership.

Plaintiffs relied on aggregate figures and reconstructed summaries to assert entitlement, rather than tracing specific property. Florida law does not permit conversion or civil-theft liability to rest on generalized totals or retrospective arithmetic where ownership is disputed and funds are pooled.

B. The Absence of Tracing Is Especially Dispositive Where Ownership Is Disputed

This defect is dispositive here because Plaintiffs’ claims presuppose ownership percentages that were themselves contested and unsupported by admissible evidence. Where entitlement to the property is disputed, precise tracing is indispensable. Without it, a court cannot determine whether the defendant exercised dominion over property belonging to the plaintiff, as opposed to funds owned by others or distributed pursuant to an established allocation structure.

Absent proof identifying specific property belonging to Plaintiffs, conversion and civil-theft liability necessarily fail.

C. The Same Failure Defeats Plaintiffs' Claim for an Accounting

An accounting is an extraordinary equitable remedy. It is not a substitute for proof of ownership or entitlement. A plaintiff seeking an accounting must first establish a right to the funds sought and show that the accounts are so complex as to require equitable intervention.

Plaintiffs established neither. They failed to identify specific property belonging to them and failed to show that any complexity justified equitable relief. An accounting may not be used to discover whether a plaintiff has a claim; it presupposes that such a claim has already been established.

Conclusion of Point IX

Because Plaintiffs failed to identify or trace any specific, identifiable property belonging to them, their claims for conversion, civil theft, and accounting lack a necessary evidentiary predicate. The Final Judgment rests on conjecture rather than proof and must be reversed.

POINT X

THE TRIAL COURT IMPROPERLY GRANTED ACCOUNTING AND TURNOVER RELIEF WITHOUT THE REQUIRED EQUITABLE AND EVIDENTIARY FOUNDATIONS

Accounting and turnover are extraordinary equitable remedies. Florida law permits such relief only where the plaintiff establishes a clear right to the property sought, the defendant's possession or control of identifiable property belonging to the plaintiff, and the absence of an adequate remedy at law. None of these prerequisites was satisfied here.

A. Plaintiffs Failed to Establish a Right to an Accounting

An accounting is not a device to determine whether a plaintiff has a claim; it presupposes that entitlement to the funds at issue has already been established. Plaintiffs failed to prove ownership, entitlement, tracing, or wrongful dominion over any specific property, as set forth in Points VI through IX.

Rather than requiring Plaintiffs to meet that burden, the trial court granted accounting relief notwithstanding the absence of proof. Florida law does not permit an accounting to substitute for evidence or to cure a failure of proof after judgment has been entered.

B. Plaintiffs Did Not Demonstrate the Complexity or Fiduciary Relationship Required for Equitable Relief

Plaintiffs also failed to establish the degree of complexity necessary to justify equitable accounting. The record reflects a finite number of projects, finite distributions, and contemporaneous payment records. Plaintiffs' difficulty stems from their disputed and unsupported ownership theory, not from any accounting complexity requiring equitable intervention.

Nor did Plaintiffs establish a fiduciary relationship warranting an accounting. Disputed business dealings among alleged co-owners do not, without more, give rise to fiduciary accounting rights, particularly where the asserted fiduciary status is itself contested and unsupported by corporate authorization.

C. The Turnover Order Exceeds the Court's Equitable Authority

Turnover relief requires proof that the defendant presently possesses specific, identifiable property belonging to the plaintiff. Plaintiffs made no such showing.

The Final Judgment does not identify any specific funds currently in Appellant’s possession, does not specify any defined documents subject to turnover, and imposes no temporal, proportional, or reciprocal limitations. Instead, it directs open-ended turnover untethered to identified property or evidentiary findings.

Such relief exceeds the lawful scope of equitable authority and deprives Appellant of due process.

D. The Accounting and Turnover Orders Are Fatally Defective Because Appellant Does Not Possess, and Never Possessed, the Requested Accounting Records

Equitable accounting and turnover relief presuppose that the defendant possesses, controls, or has custody of the property or records sought. Plaintiffs made no such showing here.

Appellant was not the accountant for Toke Oil & Gas S.A., was not the officer responsible for accounting or administration, and did not maintain corporate books or financial records. Throughout the litigation, Appellant repeatedly informed Plaintiffs and the Court that he had produced all materials in his possession and that he did not maintain any accounting beyond what had already been disclosed. Plaintiffs identified no evidence to the contrary.

An accounting order cannot compel production of records that do not exist or are not in the defendant's possession. Nor may a court presume possession of records merely because a party once participated in a business venture, particularly where the passage of time approaches two decades and the defendant was never the custodian of corporate books.

The defect is compounded by Plaintiffs' refusal to produce DeepGulf's own accounting records. Appellant is the largest shareholder and a director of DeepGulf, yet Plaintiffs denied him access to the company's books while simultaneously asserting, without proof, that Appellant possessed an accounting. Equity does not permit such one-sided relief.

Where a plaintiff fails to establish that the defendant possesses identifiable records subject to production, accounting and turnover relief are improper and must be vacated.

E. The Availability of Adequate Legal Remedies Bars Equitable Relief

Plaintiffs pursued, and partially obtained, monetary damages. Where an adequate remedy at law exists, equitable remedies such as accounting and turnover are disfavored and improper absent extraordinary circumstances. Plaintiffs demonstrated none.

Conclusion of Point X

Because Plaintiffs failed to establish the legal and factual predicates required for accounting and turnover, the trial court's grant of such relief constitutes reversible error. The accounting and turnover provisions of the Final Judgment must be vacated.

POINT XI
THE RELIEF ORDERED IS OVERBROAD, NON-RECIPROCAL, AND DISPROPORTIONATE, IN VIOLATION OF DUE PROCESS

Even where some form of relief may be warranted, a trial court must ensure that any remedy imposed is narrowly tailored to the rights actually proven, proportionate to the evidentiary findings, and consistent with fundamental principles of due process. The relief ordered here does not satisfy those requirements.

A. The Relief Ordered Is Overbroad and Lacks Required Specificity

The Final Judgment imposes accounting and turnover obligations in sweeping and indeterminate terms. It does not identify specific assets subject to turnover, define the categories of documents to be produced, set temporal limits, or tie the scope of relief to any proven ownership interest.

Equitable relief must be sufficiently specific to give notice of what is required and to permit meaningful compliance. Open-ended directives untethered to identified property or defined parameters exceed the permissible scope of equitable authority and fail to provide constitutionally adequate notice.

B. The Relief Is Non-Reciprocal and Untethered to the Evidentiary Record

Equity requires that relief correspond to the rights actually established by the evidence and that it not operate in a one-sided or punitive manner. Here, the Final Judgment imposes unilateral accounting and turnover obligations on Appellant while imposing no reciprocal duties on Plaintiffs, notwithstanding Plaintiffs' acknowledged possession of relevant financial records.

The absence of reciprocity underscores that the relief ordered is not calibrated to restore proven rights, but instead operates asymmetrically without evidentiary justification. Such one-sided relief departs from equitable principles.

C. The Injunctive Relief Ordering Turnover of Domain Names Is Unsupported by Evidence, Contract, or Law

The trial court entered injunctive relief ordering Appellant to “release and turn over” purported “DeepGulf's” domain names, passwords, and electronic data, and further authorized registrars or registries to forcibly reassign domain registrations to Appellee. (Final Judgment ¶ 11). This ruling is reversible error.

First, the court’s conclusion rests on an unproven premise: that the domain names at issue are “DeepGulf’s.” (Conclusions of Law ¶ 11). Ownership was never established. The record contains no evidence that any domain name was registered in DeepGulf’s name, assigned to DeepGulf, or subject to any trademark right. To the contrary, the domains were at all times registered in Appellant’s individual name, in some instances since the early 2000s, and no assignment or transfer of ownership was ever shown. Absent proof of ownership or a superior possessory right, injunctive turnover relief is unavailable as a matter of law.

Second, the Agreement does not support the ruling. The “Company Property” provision governs materials created for, or belonging to, the Company during the business relationship. It does not convert pre-existing, or personally registered assets into Company property by implication.

Although a company credit card was used during part of the relationship to pay routine expenses, including some domain renewal fees for a limited period beginning several years after incorporation and ending roughly a decade ago, the domains themselves were never transferred, re-registered, or designated as Company assets. Payment of maintenance costs does not establish ownership, particularly where registration and control remained continuously with Appellant.

Third, the injunction is impermissibly overbroad and indefinite. The Order requires turnover of “all domain names, passwords, and electronic data and information owned by DeepGulf, including but not limited to” a list that includes domains never shown to be owned or controlled by Appellant, and in some cases publicly available for registration by anyone. (Final Judgment ¶ 11). Injunctive relief must be specific, limited to proven property, and enforceable without speculation. This Order is none of those.

Finally, the relief ordered exceeds the scope of any contractual enforcement. Rather than directing delivery of identified Company property, the court authorized third-party registrars or registries to alter registrant-of-record information, effectively adjudicating ownership of internet domain names without findings, proof, or a proper ownership cause of action. Florida courts do not resolve title to property by injunctive fiat.

Because Appellees failed to prove ownership, contractual entitlement, or any lawful basis for the scope of relief ordered, the injunction lacks legal foundation and exceeds the court's equitable authority.

D. The Scope of Relief Is Disproportionate to Any Entitlement Proven

The breadth of the relief ordered bears no proportional relationship to any entitlement established at trial. As demonstrated in Points V through X, Plaintiffs failed to prove ownership, tracing, or entitlement to the funds or records sought. Nevertheless, the Court imposed remedies as though Plaintiffs' most expansive and disputed theories had been fully proven.

Relief may not exceed the proof. Courts may not grant remedies based on assumed ownership interests, unproven percentages, or rejected theories of entitlement.

E. The Overbreadth and Asymmetry of the Relief Implicate Due Process

Orders compelling open-ended disclosure or turnover without clear standards, limitations, or reciprocal protections implicate due process concerns. Such orders deprive a party of property and procedural safeguards without adequate notice or a meaningful opportunity to be heard.

Equitable remedies must function to restore proven rights, not to impose leverage or punishment. The relief ordered here fails that standard.

Conclusion of Point XI

Because the relief ordered in the Final Judgment is overbroad, non-reciprocal, and disproportionate to any entitlement proven, it violates fundamental principles of equity and due process. The accounting and turnover provisions must therefore be vacated.

POINT XII
PLAINTIFFS' DEMAND FOR ACCOUNTING AND TURNOVER IS BARRED BY THEIR REFUSAL TO PROVIDE CORPORATE BOOKS TO A MAJOR SHAREHOLDER AND DIRECTOR, RENDERING THE REQUESTED RELIEF INEQUITABLE

Equitable relief is unavailable where the party seeking it has engaged in conduct that renders the requested remedy structurally unfair. A party may not demand transparency and disclosure while simultaneously withholding the very records necessary to test its claims. Equity does not permit such asymmetry.

A. Plaintiffs Withheld Corporate Books While Demanding Accounting and Turnover

Since at least 2019, Appellant, an approximately 46% shareholder of DeepGulf and a director whose status Plaintiffs alternately acknowledge or deny depending on litigation posture, repeatedly and formally requested access to DeepGulf's corporate books and records. Those requests were made directly to Howard and reiterated in court filings over multiple years.

Plaintiffs did not produce the requested records. Instead, they refused access or conditioned inspection on in-person review at a private residence in Pensacola, notwithstanding Appellant's documented financial hardship, medical limitations, and geographic distance. No reasonable alternative was offered.

Only once, and only under threat of subpoena, were limited records produced in 2019. Even then, access was restricted. Plaintiffs thereafter continued to withhold the company's books.

B. Plaintiffs Cannot Seek Accounting While Denying Access to the Same Records

Notwithstanding their refusal to produce DeepGulf's books, Plaintiffs premised their claims on asserted corporate activity and simultaneously sought accounting and turnover relief against Appellant. That posture is irreconcilable with equitable principles.

A party may not invoke equity to compel disclosure from an opposing party while denying access to the records within its own control, particularly where those records bear directly on ownership, entitlement, capital structure, and the very claims advanced.

C. The Withholding of Corporate Books Causes Concrete Prejudice

Plaintiffs' refusal to provide DeepGulf's books deprived Appellant of the ability to evaluate claimed corporate activity, assess shareholder compliance, verify capital structure, or determine the basis for claimed entitlements. It also prevented Appellant from assessing the company's financial obligations, including asserted legal expenditures, while Plaintiffs simultaneously refused to advance defense costs under the bylaws.

Granting unilateral accounting and turnover relief in these circumstances inverted equitable doctrine by rewarding concealment and penalizing the party denied access to core corporate records.

Conclusion of Point XII

Because Plaintiffs withheld DeepGulf's corporate books from a major shareholder and director while demanding accounting and turnover from Appellant, their request for equitable relief is barred as structurally inequitable. For this independent reason, the accounting and turnover provisions of the Final Judgment cannot stand.

POINT XIII
THE CUMULATIVE EFFECT OF THE ERRORS IDENTIFIED ABOVE DEPRIVED APPELLANT OF A FAIR TRIAL AND REQUIRES REVERSAL

As demonstrated throughout Points I–XII, the Final Judgment is infected by multiple, independent errors that, taken together, deprived Appellant of a fair trial. Even if any single error identified in Points V through XII were deemed insufficient, standing alone, to warrant reversal, the cumulative effect of those errors deprived Appellant of a fair trial and requires reversal.

The Final Judgment rests on a convergence of fundamental defects, including:

- reliance on undisclosed and unauthenticated exhibits;
- acceptance of unsworn advocacy materials and post hoc arithmetic theories as proof;
- findings unsupported by competent, substantial evidence;

- internally inconsistent conclusions resting on mutually exclusive premises;
- failure to require identification or tracing of specific property;
- failure to adjudicate a properly raised, dispositive statute-of-limitations defense, including the absence of findings as to accrual;
- imposition of extraordinary equitable remedies without the required factual or legal predicates;
- overbroad and non-reciprocal relief untethered to proven entitlement; and
- disregard of Plaintiffs' long-standing refusal to provide corporate books to a principal shareholder and director while demanding accounting and turnover relief.

Each of these errors independently undermines confidence in the judgment. Taken together, they demonstrate a proceeding in which essential safeguards of due process and evidentiary reliability were eroded.

Florida law does not permit adjudication by aggregation of procedural and evidentiary shortcuts. Where evidentiary rules are relaxed, burdens of proof diluted, and equitable principles inverted in favor of one party, the resulting judgment cannot be sustained, regardless of the label attached to the claims.

The prejudice to Appellant was concrete and substantial. He was deprived of timely access to evidence, denied reciprocal discovery, subjected to liability based on unsupported assumptions, and compelled to defend against internally inconsistent theories without the protections guaranteed by Florida law.

Because the cumulative effect of these errors rendered the proceedings fundamentally unfair, the Final Judgment must be reversed.

PRESERVATION OF ISSUES AND PROCEDURAL POSTURE

All issues raised in this appeal were timely and repeatedly preserved in the trial court through objections, motions, notices, and written submissions, including challenges to the authenticity, admissibility, and reliability of Plaintiffs' exhibits; objections to unsupported ownership and accounting theories; and opposition to unilateral and overbroad equitable relief.

The arguments advanced here were also presented in detail in Appellant's prior federal appellate briefing before the Eleventh Circuit. That court did not reject those arguments on the merits; instead, it remanded the matter on jurisdictional grounds. Accordingly, no factual or legal issue addressed herein has been adjudicated adversely to Appellant in a manner carrying preclusive effect.

The remand did not cure, nor could it cure, the evidentiary, procedural, and due-process defects identified in this appeal. To the contrary, those defects were replicated and compounded in the proceedings below, culminating in the Final Judgment now under review.

Appellant has therefore preserved all arguments raised herein, and none is barred by waiver, forfeiture, or prior adjudication.

CONCLUSION AND RELIEF REQUESTED

The Final Judgment cannot be affirmed. It rests on a convergence of legal and evidentiary errors that, individually and cumulatively, deprived Appellant of a fair adjudication and produced findings unsupported by competent, substantial evidence.

First, the case proceeded in state court only because of a remand premised on a factual and legal impossibility: the purported presence of "Toke Oil & Gas S.A." as a foreign plaintiff. The record establishes that Toke lacked any foreign domicile and never authorized litigation through a valid board act. Its inclusion as a plaintiff was therefore a nullity. A nonexistent or unauthorized party cannot defeat diversity jurisdiction, yet that fiction alone dismantled a federal judgment in which Appellant had prevailed on the merits. The proceedings below were built on that structural defect from inception.

Second, Plaintiffs' substantive claims were time-barred. The undisputed record shows that the alleged wrongful takings underlying Plaintiffs' civil-theft and conversion theories were complete years before this action was filed in 2018, and were openly reflected in contemporaneous records. Under section 772.17 and controlling Florida law, accrual occurs when the alleged taking is complete, not upon later discovery. The trial court made no findings addressing accrual, the date the alleged takings were complete, or the statute-of-limitations defense, despite its dispositive nature. A judgment that ignores a properly raised statute-of-limitations bar cannot stand.

Third, liability findings for civil theft and conversion rest exclusively on PX-13, PX-15, and PX-17, materials that were undisclosed, unauthenticated, or legally incapable of proving ownership, entitlement, intent, or wrongful dominion. A lawyer's demand letter, a self-authored spreadsheet advancing an implausible 83.67% ownership theory, and a partial payment list cannot substitute for admissible proof. The Florida Evidence Code and due process forbid judgment by assertion or arithmetic reconstruction.

Fourth, the Final Judgment is internally inconsistent. The court rejected civil theft of $959,764.22, yet simultaneously found conversion of the same funds without identifying any additional evidence establishing ownership or entitlement. Mutually exclusive factual premises cannot coexist within a sustainable judgment.

Fifth, the court granted extraordinary equitable relief, accounting and turnover, without the required predicates of proven ownership, tracing of specific property, present possession, or absence of an adequate legal remedy. That relief was overbroad, non-reciprocal, and imposed despite Plaintiffs' long-standing refusal to produce corporate books to Appellant, a principal shareholder and alleged director. Equity does not permit such asymmetry.

Finally, these errors were compounded by procedural violations that foreclosed meaningful defense: denial of indigency and remote appearance despite documented impossibility of travel; default entered for non-willful noncompliance; reliance on exhibits disclosed only months after trial; and the absence of any transcript or record capable of appellate reconstruction.

For these reasons, Appellant respectfully requests that this Court:

1. **Reverse** the Final Judgment in its entirety and direct entry of judgment in favor of Appellant; or, at minimum,
2. **Vacate** the Final Judgment and remand with instructions to dismiss all claims that are time-barred or unsupported by competent, substantial evidence, and to vacate all accounting and turnover relief;
3. **Alternatively**, remand for further proceedings before a different judge, with instructions requiring strict adherence to the Florida Evidence Code, due process, reciprocal discovery, and proportional relief; and
4. Grant such other relief as this Court deems just and proper.

Respectfully submitted this 4th day of January, 2026.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 4th day of January 2026, a true and correct copy of the foregoing was served on all counsel of record via the Florida Courts E-Filing Portal.

M. Maszkowski

CERTIFICATE OF COMPLIANCE

Pursuant to Florida Rule of Appellate Procedure 9.210(a)(2), I certify that this Initial Brief of Appellant:

1. is written in 14-point Arial font;
2. is double-spaced; and
3. contains **12,841 words**, excluding the parts exempted by Rule 9.210(a)(2)(B).